ARRANGEMENT OF SECTIONS

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IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*], approved the following by-laws:—

Title

1. These by-laws may be cited as the City of Masvingo (Cemeteries) By-laws, 2025.

Application

2. These by-laws shall apply to all areas under the jurisdiction of the Council.

Interpretation

3. In these by-laws—

"adult" means any deceased person over the age of twelve years and any deceased person whose coffin exceeds the dimensions prescribed for a child's grave section 11(4);

"allotment" means the area of ground set aside for the purpose of forming a grave;

"ashes" means the ashes resulting from the burning of any body cremated in terms of the Burial and Cremation Act [*Chapter 5:04*];

"body" means any human dead body and includes the body of a still-born child, but does not include ashes;

"burial" means a burial in earth, interment or any other form of sepulchre of a body;

"child" means any deceased person twelve years of age or under whose coffin does not exceed the dimensions prescribed for a child's grave section 11(4).

"Council" means the City of Masvingo;

"designated officer" means an official appointed by the Council for the purposes of these regulations;

"grave" means a burial place formed in the ground by excavation without any internal wall or brickwork or stonework or any artificial lining;

"memorial garden" means any area of land in a cemetery set aside by the Council for the disposal of ashes of deceased persons;

"memorial plot" means a plot of ground in a memorial garden, for which the Council has granted the right to any person to dispose of the ashes of a deceased person;

"memorial work" means any tombstone, railing, fence, monument, memorial, inscription or other work erected or which may be erected upon any grave;

"register" means the register required to be kept by the Council in terms of section 25 of the Cemeteries Act [*Chapter 5:04*];

"reserved" means reserved in terms of section 5 and "reservation" shall be construed accordingly;

"resident" means any person who at the time of death was normally resident within the area under the jurisdiction of the Council;

"responsible person" means the person to whom permission has been granted by the Council in terms of section 10(1);

"still born" shall apply to any child which has issued forth from its mother after the twenty-eight week of pregnancy and which did not at any time after being completely expelled from its mother breathe or show any signs of life;

"vehicle" includes any motor vehicle, bicycle, tricycle or handcart;

"vault" means any protective masonry or other work carried out in a grave.

Permission for burial

4. (1) No person wishing to bury or cause any body or any ashes to be buried in a cemetery shall bury or cause such body or ashes to be so buried unless he or she has delivered to the designated officer the written permission of Council to such burial.

(2) Every application for such permission shall include the full names of the deceased person, his or her age, last address and religious denomination, the proposed time and date of burial and any other details which the Council may require together with a prescribed fee.

(3) Permission for such burial shall be given—

(a) in the case of a body, upon the production of a burial order, issued in terms of the Burial and Cremation Act [*Chapter 5:03*] or regulations enacted there under, made out in the name of the person whose body is to be buried;

(b) in the case of ashes, upon the production of a certificate issued by the officer in charge of the cremation established in terms of the Burial and Cremation Act [*Chapter 5:03*] indicating that the ashes are those of the cremated body of the person named in the certificate.

(4) No person shall bury or cause any body or ashes to be buried in a cemetery unless the Council has allotted a grave and grave number for the particular burial.

(5) No person shall dispose of any ashes of any deceased person in the memorial garden without the written permission of the Council.

(6) The grave number allotted in terms of subsection (4) and the date of interment shall be entered by the Council in the register against the name of the person whose body is or whose ashes are to be buried.

(7) The Council shall fix to every grave a sign displaying the number allotted to that grave in the register.

(8) Any person who fails to abide by the provisions of this section shall be liable to a fine specified in the Second Schedule.

Reservation for future burial

5. (1) Any person wishing to reserve an allotment or memorial plot for his or her own future burial or for that of any other person shall make application to the Council giving full names, address and religious denomination of the person for whom the reservation is to be made.

(2) On the receipt of such application and the reservation fee prescribed by Council, the Council shall reserve an allotment or memorial plot; assign a grave number in the register against the name of the person in respect of whom the allotment or memorial plot is reserved.

(3) The effect of reserving such allotment or memorial plot shall be that, at any period within five years of making such reservation, the person in respect of whom the reservation is made may be buried in that allotment or his or her ashes placed in that memorial plot, as the case may be on payment of the interment fee and no other body may be buried within that allotment or ashes placed in that memorial plot during that period of five years.

(4) If that allotment or memorial plot reserved in terms of this section is not used for burial within five years of such reservation,

the reservation shall lapse unless application is made to the Council for the extension of the reservation for a further five years.

(5) On payment of the prescribed fee to the Council for the renewal of the reservation, the allotment or memorial plot shall be reserved for a further period of five years.

(6) No person shall cede or assign his or her right to an allotment or memorial plot reserved in terms of this section without the permission of the Council.

(7) The area of an allotment shall be—

(a) for an adult's body, 2m by 1m;

(b) for a child's body, 1m by 60cm;

(c) for ashes in an urn, 60cm by 60cm.

Application for exclusive right of burial

6. The Council, on receipt of an application by any person for the exclusive right of burial in a portion of a cemetery, may grant, sell or lease to such person the exclusive right of burial in a portion of a cemetery subject to such terms or conditions as it deems fit to impose.

Burial times

7. (1) Burial shall take place on daily basis.

(2) All burials shall take place between the hours of 0900 to 1600 hours:

Provided that burial of infants under the age of one, shall be allowed outside the normal burial hours at no extra cost.

Fees to be paid for burial

8. (1) Subject to the provisions of section 11 of the Cemetery Act [*Chapter 5:04*], no person shall bury any body or ashes within a cemetery or dispose of any ashes of a deceased person in a memorial garden unless he or she pays the fee prescribed by Council.

(2) The burial fee for any burial permitted outside the time prescribed in section 7(2) shall be double the burial fee prescribed by Council.

(3) The Council may, upon application being made by the person administering the estate of the deceased within six months of the date, refund the fee paid in terms of section 5(2), but such fee will not normally be refunded unless the person for whom the allotment was reserved died outside the area under jurisdiction of the Council, in which case the fee shall be refunded to the deceased estate of that person.

(4) The Council may for good cause and upon application allow any burial free of charge.

(5) The prescribed fees shall be paid to the Council at the council offices.

Sections of cemetry may be assigned for exclusive use

9. The Council may assign sections of any cemetery for the exclusive use of any religious denomination.

Erection of memorial works

10. (1) No person shall erect or cause to be erected any memorial work without the prior written permission of the Council and any application for such permission shall be accompanied by a plan showing full details of the memorial work it is proposed to erect.

(2) The Council may refuse to permit the erection of any memorial work until the burial fee for the particular grave has been paid in full.

(3) Any person erecting or causing any memorial work to be erected shall pay a fee which shall be prescribed by council from time to time.

(4) No memorial work shall exceed—

(a) in the case of an adult's grave, 2,438m in length or 1,219m in width;

(b) in the case of a child's grave, 1,20m in length or 70cm in width:

Provided that, in the case of an allotment of two or more allotments to a single family, the Council may approve a memorial work exceeding 1,219m width.

(5) Only materials approved by Council shall be used in memorial work.

(6) Any person constructing any memorial work in a cemetery shall—

(a) securely cramp from the outside with suitable cramps all head and border stones;

(b) use suitable cramps, pins or dowels of a thickness approved by the Council and of a length sufficient to fit holes of not less than two inches deep wherever any part of any memorial work is joined to any other part;

(c) securely attach to the base all memorials or headstones to the satisfaction of the designated officer;

(d) place on a slab or concrete foundation—

(i) measuring 2.4m by two, wide by 30cm, for any gravestone or monument exceeding 40kg, in weight;

(ii) measuring 90cm by 30cm wide by 30cm deep for any gravestone or monument not exceeding 40kg in weight;

(e) make the line of all memorial work correspond correctly to a line drawn between iron pegs placed in the various sections of the cemetery for that purpose.

(7) The responsible person shall keep the memorial work erected in terms of subsection (1) in good order and repair after its erection.

(8) Any person in charge of work within any cemetery shall, upon demand at any time by the designated officer produce his or her written permission to carry out such work.

(9) No person shall erect any memorial work in a memorial garden other than erection of plaques made of brass, bronze or aluminium and such plaques shall not be larger than eleven inches in size and shall be securely attached to the concrete kerb adjacent to the memorial plot.

Depth of grave

11. (1) Every grave, other than a grave for the reception of ashes, shall be dug to a depth of not less than two point one meters below the surrounding ground level and there shall be at least one point two meters of earth between a coffin and the surrounding ground level.

(2) No person shall cause or permit more than two bodies to be placed in any grave unless at the first opening the grave has been made to an extra depth.

(3) No person shall cause or permit anybody or coffin to be removed from any grave with a view to making room for a new burial.

(4) Every grave for an adult shall be seven feet(210cm) long by two feet(60cm) six inches(15,24cm)(75,24cm) wide and for a child shall be five feet(150cm) long by one foot(30cm) six inches(15,24cm) (45,24cm) wide:

Provided that any person requiring an aperture of larger dimensions for any burial shall, together with the notice of the burial, give notice to the Council of the additional dimensions required.

(5) No person shall permit any exhumation except at such time as shall be specified by the Council and other relevant authorities.

Exhumation

12. (1) Subject to the provisions of the Inquests Act [*Chapter 7:07*], no body which has been buried shall be exhumed within two years after the date of burial.

(2) Any person wishing to exhume a body which has been buried in a cemetery for reburial in another place shall make application to the Council for permission to do so.

(3) Any exhumation sanctioned by the Council shall be subject to such conditions as the Council may stipulate.

(4) No person shall open any grave within two years after the date of any burial therein without the prior written permission of the Council.

Erection of buildings in cemetery

13. No buildings of any description shall be erected within a cemetery without the consent of the Council.

Hours cemetery open to the public

14. (1) Every cemetery shall be open to the public during such hours as the Council shall determine, and no person except those authorised shall be in a cemetery at any material times.

(2) No person shall enter or leave a cemetery except through the designated entrance points.

Other restrictions

15. (1) No person shall—

(a) carry out the hewing or dressing of stone or carry out like operations within a cemetery without the written permission of the Council; or

(b) exhibit or distribute or leave any business card or advertisement within a cemetery; or

(c) use a cemetery or any road or walk through therein for the conveyance of goods or other materials unless such goods or materials are required for use in such cemetery; or

(d) sit, stand or climb upon or over any memorial work, gate, wall, fence or building in a cemetery; or

(e) hinder, obstruct or resist the designated officer in the course of his or her duty; or

(f) place any floral tribute, flowers, vases or any other container within the memorial garden without Council approval; or

(g) plant any tree on any grave.

(2) No vehicles shall be caused or permitted into a cemetery unless Council approval is sought.

(3) Subsection (2) shall not apply to hearses or to vehicles used for the conveyance of infirm persons.

Offences and penalties

16. Any person who contravenes any provision of these by-laws shall be liable to a fine specified in the Second Schedule.

First Schedule

FEES PAYABLE TO COUNCIL

	Section	Fee (USD)
Lawn Cemetery		
Adults		
Normal (Week days)	4 and 8	15,00
Weekends and Public Holidays	4 and 8	15,00
Non Residents	4 and 8	20,00
Non Zimbabweans	4 and 8	80,00
Children		
Normal(Week days)	4 and 8	10,00
Weekends & Public Holidays	4 and 8	10,00
Non Residents	4 and 8	10,00
Non Zimbabweans	4 and 8	40,00
Mangwandi or Cambria Cemetary		
Adults		
Normal (Week days)	4 and 8	10,00
Weekends & Public Holidays	4 and 8	10,00
Non Residents	4 and 8	15,00
Non Zimbabweans	4 and 8	80,00
Children		
Normal	4 and 8	5,00
Weekends & Public Holidays	4 and 8	5,00
Non Residents	4 and 8	10,00
Non Zimbabweans	4 and 8	40,00

All Cemeteries		
Grave Searching Fees	4 and 8	10,00
Tombstone installation application fee	4 and 8	20,00
Grave Reservation Grave Reservation renewal	5	60,00 60,00
Annual Fee for Reserved Graves	5	15,00
Application for exclusive right of burial	6	0,00
Special burial times	7	0,00
Grave Panels (eight)(8)		Cost Recovery
Application for erection of memorial works	10	20,00
Application for exhumation	12	0,00
Lined Grave		Cost Recovery

SECOND SCHEDULE (*Section 16*)

PENALTIES

Offences	**Section**	**Amount (USD)**
Unauthorised burial of a body or ashes at a Council Cemetery	4	$100,00
Cause or permit more than two bodies to be placed in any grave	11	$100,00
Cause or permit any body or coffin to be removed from any grave	11	$100,00
Exhumation without approval	12	$100,00
Erect building in a cemetery without the consent of the Council.	13	$100,00
Unauthorised entry of cemetery	14	$20,00
Enter or leave a cemetery except through the designated entrance points	14	$20,00
Hewing or dressing of stone or carry out like operations within a cemetery without the written permission of the Council.	15	$20.00

Offences	Section	Amount (USD)
Exhibit or distribute or leave any business card or advertisement within a cemetery	15	$20,00
Use a cemetery or any road or walk through therein for the conveyance of goods	15	$10,00
Stand or climb upon or over any memorial work, gate, wall, fence or building in a cemetery	15	$5,00
Hinder, obstruct or resist the designated officer in the course of his or her duty.	15	$100,00
Place any floral tribute, flowers, vases or any other container within the memorial garden without Council approval	15	$5,00
Plant any tree on any grave.	15	$20,00
Cause unauthorised entry of vehicle	15	$20,00

NB: The fines and penalties are payable in local currency at the prevailing interbank rate.